



TKDL Outcomes against bio-piracy

United States Patent and Trademark Office (USPTO)

After conclusion of the Access Agreement with the United States Patent and Trademark Office, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

1. Amendment / Modification of Claims by Applicants/Examiners due to TKDL Prior Art Evidence

2. Claims Rejected by the Examiner due to TKDL Prior Art Evidence

1. Amendment / Modification of Claims by Applicants/Examiners due to TKDL Prior Art Evidence

S.No	Pub No.	Title	Applicant	Date of Filing	Date of TKDL Evidence	Date of Examiners Report	Date of Amendment of Claims	Current Status
1. *	20100203117	Anti-adipogenic compositions containing piper betle and dolichos biflorus.	Kramer & Amado, P.C. 1725 Duke Street, Suite 240, Alexandria, VA, 22314, United States	24-Mar-10	03-Sep-10	15-Jul-11 26-Apr-12 05-May-15	16-Sep-11 02-Jul-12	Application is under progress
2.	20100203078	Anti-obese compositions containing holoptelea integrifolia extracts.	LAILA NUTRACEUTICALS, Vijayawada, India	20-Aug-07	10-Sep-10	26-Sep-11	18-Nov-11	Application is under progress
3.	20110097424	Herbal formulations for the management of chronic ulcers and wounds.	Apptec Inc, C/o Bregen Technical Consultant S L.L.C., 154 old clinton road flemington nj 08822	26-Oct-10	23-May-11	25-Aug-11 20-Apr-12	19-Dec-11	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued
4.	20110052737	Topical skin formulations comprising Botanical Extracts.	Mary Kay Inc, Dallas Texas, United States	12-Aug-10	26-Apr-11	22-Mar-12	22-Mar-12	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued
5.	20100178367	Herbal formulation for Wound Healing	Manish Saxena , New Delhi, India	25-Mar-10	-----	08-Nov-11 10-Apr-12 11-Jul-14	11-Jun-12 10-Jul-12	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued
6.	20100129296	Extract of Trigonella Foenum-Graecum.	SUGHRUE MION, PLLC 2100 PENNSYLVANIA AVENUE, N.W., SUITE 800, WASHINGTON DC 20037, United States	17-Nov-09	29-Jun-10	13-Apr-12	13-Jul-12	Application is under progress
7.	20110177184	Bloat therapeutic agent for a Ruminant	Chie Suzuki, Kyo Nagashima, Masami Mochizuki, Japan	28-Sep-09	-----	02-Feb-12	17-Jul-12	Applicant amended the claims & the application is under progress
8.	20100203178	Synergistic Herbal Composition	Suresh Kumar Gupta, New Delhi, India	22-Apr-10	-----	20-Apr-12 14-Nov-11	19-Jul-12	After amendment of claims on India's TK, application is abandoned
9.	20100291249	Pomegranate-derived Products for the Treatment of Skin Sores and Lesions	MDIP LLC, Post Office Box 2630 Montgomery	27-Jul-10	28-Dec-10	14-Feb-12 23-Oct-12	14-Aug-12	After amendment of claims

			Village, MD, 20886-2630, US					on India's TK, application is abandoned
10. *	20110118346	Novel use of Lignan-type compounds or extract of Nutmeg or Aril of Nutmeg comprising the same	Hwang; Jae Kwan; Cho; Yu-Mi; Kim; Gyu Hoi; South Korea	17-Oct-08	21-Jun-11	24-Dec-12 27-Mar-14	24-Jun-13	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued
11.	20120128808	Agents from Ficus Hispida for the Amelioration of Metabolic syndrome and related diseases	Laila Nutraceuticals, India	02-Feb-12	-----	02-Jan-13 08-Jan-13	30-Oct-13	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued
12.	20130005830	Sandalwood oil and its uses	Santalal Pharmaceuticals Inc., US	31-Aug-12	-----	18-Oct-13 22-Apr-14 29-May-15	21-Jan-14	Application is under progress
13.	20120115891	Method for the induction of a reward response by modulation of dopaminergic systems in the central nervous system	Somalabs Inc., US	01-Mar-12	-----	25-Oct-13 23-Apr-14 03-Oct-14	25-Feb-14	Application is under progress
14.	20120329739	Composition for preventing or treating Poliosis or Vitiligo comprising a Pueraria genus plant extract or Puerarin	Kim; Hyoung-Jun, Korea	31-Aug-12	20-Feb-13	20-Mar-14 06-Aug-14	19-Jun-14	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued
15.	20160074453	A METHOD AND COMPOSITION USING MYRRH, DILL AND PEEL OF POMEGRANATE AS A NATURAL REMEDY FOR CHRONIC WOUNDS	UMM AL-QURA UNIVERSITY, Makkah, (SA)	25-Sep-14	-----	22-Aug-16	22-Nov-16	After amendment of claims on India's TK, application is abandoned.
16.	20150050369	TERMINALIA CHEBULA AND TERMINALIA BELLIRICA EXTRACTS FOR INHIBITION OF XANTHINE OXIDASE	Natreon, Inc. New Brunswick	13-Aug-14	-----	22-Apr-16 06-Sep-17	28-Apr-17	After amendment of claims on the basis of prior art in TKDL, patent issued.
17.	20150157683	ANTI-DIABETIC NUTRACEUTICAL COMPOSITION FROM PALM LEAF EXTRACT	UNIVERSITI PUTRA MALAYSIA	13-Feb-15	-----	15-Sep-16 27-Feb-17 11-Aug-17	10-May-17 10-Nov-17	After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued.

* Examiner further searched the TKDL database independently and rejected few more claims on 26.04.2012.

2. Claims Rejected by the Examiner due to TKDL Prior Art Evidence

S.No	Pub No.	Title	Applicant	Date of Filing	Date of TKDL Evidence	Date of Rejection of claims (Examiners Report)	Current Status
1.	20090104297	HERBAL COMPOSITION FOR TREATMENT OF INFECTIONS CAUSED BY DERMATOPHYTES	Piramal Life Sciences Limited	17-Sep-08	-----	22-Jun-11 15-Apr-14	-----
2.	20090298941	ANTI-ADIPOCYTE FATTY ACID-BINDING PROTEIN (AP2), ANTI-FLAP AND ANTI-CYSLT1 RECEPTOR HERBAL COMPOSITIONS	LAILA IMPEX	06-Mar-09	16-Mar-10	29-Aug-11 24-Apr-12	Granted
3.	20100239696	Flaxseed lignan complex, methods of using and compositions thereof	Pearl Cohen Zedek Latzer, LLP, 1500 Broadway, 12th Floor, New York 10036, United States	01-Jun-10	01-Nov-10	06-Jan-12	Application is under progress

4.	20090269398	Compositions for the encapsulation of natural product extracts in oil medium in hard gelatin capsules and a method of encapsulation	Vilambi NRK Reddy, US	26-Apr-08	-----	18-Jan-12	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
5.	20100173022	Composition for the treatment of Diabetes Mellitus and Metabolic Syndrome	Morrison & Foerster LLP, 12531 High Bluff Drive, Suite 100, San Diego, CA, 92130-2040, United States	22-Mar-10	03-Aug-10	19-Sep-12	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
6.	20110305779	Phytochemical combinations that regulate pathological immunity	COWAN; Fred M., US	09-Jun-11	-----	25-Feb-13 18-Sep-13	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
7.	20100061944	Oral hygiene composition comprising myrtle	Mars Incorporated, US	14-Aug-09	-----	14-Mar-13	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
8.	20120231032	Agent for expelling parasites in humans, animals or birds	Maria Wilhemina Meijs, US	03-May-12	25-Feb-13	24-Jun-13	After rejection of claims on India's TK on the basis of prior art in TKDL, patent issued
9.	20130017279	Formulations for treatment of skin disorders	N. B. Baktha Reddy, Chennai, India	13-Sep-12	-----	26-Jul-13	After rejection of claims on India's TK on the basis of prior art in TKDL, patent issued
10.	20080199550	Novel Anticancer Agent, Methods for Obtaining the Same and Pharmaceutical Compositions Thereof	MMI Corporation, US	29-Feb-08	-----	27-Nov-13	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
11.	20130095171	Herbal composition and method for treatment of airway inflammation using the same	Taichung Veterans General Hospital, Taiwan	11-Oct-12	15-Aug-13	17-Dec-13	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
12.	20130337057	Novel herbal composition for the treatment of kidney stone and other urinary tract disorders	M/S Patankar; Suresh Balkrishna, India	03-Sep-03	24-Mar-14	01-Jul-14 08-May-15	Application is under progress
13.	20140106002	Homeopathic composition and method for the treatment of Skin Irritations and other Skin diseases	M/S Jensen; Ned L, US	15-Mar-13	17-Oct-14	06-Jan-15	Application is under progress
14.	20080206372	HERBAL PRODUCT TO BE ADMINISTERED TO DIABETIC PEOPLE AND PROCESS TO OBTAIN IT	Juan Carlos AGREDA NAVAJAS	05-May-08	-----	13-Nov-15	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
15.	20160184374	SANDALWOOD OIL AND ITS USES	SANTALIS PHARMACEUTICALS, INC.	29-Jul-15	-----	21-Apr-17	After consideration of prior art evidences in TKDL also by the examiner, application abandoned
16.	20150118333	NOVEL COMPOSITIONS AND USES THEREOF	Thomas Jesch and Jacqueline Jesch	24-Oct-14	-----	22-Jun-17	After consideration of prior art evidences in TKDL also by the examiner, application abandoned

17.	20150174185	Viral Trappers	M/S Bhaskara Rao Katragadda / India	15-Jan-15	12-Nov-15	29-Aug-18	Application is under progress
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